

24CHCV04669 24CHCV04669

County: los-angeles

Division: Civil Law and Motion

Department: F51

Hearing date: 2026-08-12

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Case Number: 24CHCV04669 Hearing Date: August 12, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

AUGUST 11,

2026

MOTION TO COMPEL FURTHER

DISCOVERY RESPONSES

(Requests for

Production of Documents, Set One)

Los Angeles Superior Court

Case # 24CHCV04669

Motion

filed: 4/27/26

MOVING

PARTY: Plaintiffs

Matthew Mathews; and Lisa Mathews (collectively, "Plaintiffs")

RESPONDING

PARTY: Defendant

Ford Motor Company ("Defendant")

NOTICE: OK

RELIEF

REQUESTED: An

order compelling Defendant's further responses to Plaintiffs' Requests for Production of Documents ("RFPs"), Set One, Nos. 16–18, 20–29, and 30. Plaintiffs also request monetary sanctions against Defendant and its counsel in the amount of \$2,195.00.

TENTATIVE

RULING: The

motions are granted in part. The Court orders Defendant to provide further code-compliant responses to Plaintiff's Requests for Production of Documents ("RFPs"), Set One, Nos. 16–18, 20–29, and 30, as limited below, within 30 days. The Court imposes \$410.00 in monetary sanctions against Defendant and its counsel, payable within 45 days.

Plaintiffs are reminded to review the 5/3/19 First Amended General Order Re Mandatory Electronic Filing for Civil. When e-filing documents, parties must comply with the "TECHNICAL REQUIREMENTS" which are set forth at page 4, line 4 through page 5, line 12 of the Court's 5/3/19 First Amended General Order Re Mandatory Electronic Filing for Civil (particularly bookmarking declarations and exhibits). (CRC 3.1110(f)(4).) Failure to comply with these requirements in the future may result in papers being rejected, matters being placed off calendar, matters being continued so documents can be resubmitted in compliance with these requirements, documents not being considered and/or the imposition of sanctions.

BACKGROUND

Plaintiffs bring this action under the Song-Beverly Consumer Warranty Act (Civil Code § 1790 et seq.) for a vehicle they purchased on 6/25/22, for which Defendant issued the manufacturer's express warranty. (Compl. ¶¶ 9–10.)

On 12/18/24, Plaintiffs filed their complaint, alleging against Defendants the following causes of action: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Fraudulent Inducement – Concealment; and

(3) Negligent Repair. On 2/5/25, Defendant filed its answer.

On 3/13/25, Plaintiffs served their first set of RFPs on Defendant. (Decl. of Matias Leite ¶ 3.) On 4/18/25, Defendant served objection-only responses thereto. (Id. at ¶ 4.) On 2/11/26, Defendant served responses to the subject discovery requests. (Id. at ¶ 8.)

On 4/27/26, Plaintiffs filed the instant motion to compel further responses to the subject RFPs. On 7/31/26, Defendant filed its opposition. On 8/5/26, Plaintiffs filed their reply.

ANALYSIS

California

law requires a responding party to respond to each request for production of documents with either a statement of compliance, a representation that the party lacks the ability to comply, or an objection to the demand. (Code Civ. Proc. § 2031.210, subd. (a).) If the response includes an objection to the demand in part, it must also include a statement of compliance or noncompliance. (Code Civ. Proc. § 2031.240, subd. (a).) Additionally, the response must (1) identify the particular document that falls within the category of the request to which the objection is being made, and (2) expressly set forth the extent of, and specific ground for, the objection. (Id. at subd. (b).) A propounding party may move for an order compelling further response to a discovery request if it decides that “an objection in the response is without merit or too general.” (Code Civ. Proc. § 2031.310, subd. (a).)

Meet and Confer

A motion to compel further discovery responses must be accompanied by a meet and confer declaration stating “facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc. §§ 2031.310, subd. (b)(2); 2016.040.)

Here, Plaintiffs’ counsel declares that beginning on 3/27/26, he and Defendant’s counsel began the meet and confer

process regarding the issues raised in the instant motion. (Leite Decl. ¶¶ 9–11.) While Defendant disputes the good faith nature of Plaintiff’s meet and confer efforts, the Court finds that counsel has satisfied the preliminary meet and confer requirements under Code of Civil Procedure sections 2030.300, subdivision (b)(1) and 2031.310, subdivision (b)(2).

RFPs

Here,
Plaintiffs seek to compel Defendant’s further responses to their RFP Nos. 16–18, 20–29, and 30.

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RFP

Nos. 16–18 and 20–24

Plaintiffs’ RFP Nos. 16–18 and 20–24 seek the production of Defendant’s warranty claims policies and procedures manuals and employee training materials from 2022 to the present. (Ex. A to Leite Decl.) In response, Defendant agreed to produce its Warranty Policy and Procedure Manual and training materials applicable to the year 2024 only, subject to a protective order, and refused to produce any further materials.

Plaintiffs argue that further responses are warranted because “Courts have long recognized that a manufacturer’s policies—or lack of policies—related to how it deals with consumer complaints and its decision on whether to replace or repurchase are important in determining whether a manufacturer has committed a willful violation of the Act.” (Pls.’ Mot. 5:2–6.)

In opposition, Defendant argues that its responses agreeing to produce documents partially responsive to RFP Nos. 16–18 and 20–24 are

sufficient because Defendant “properly objected to these Requests as overly broad and seeking irrelevant documents because they are not limited to a reasonable or relevant timeframe, to any particular warranty claim at issue, to Plaintiffs, or to the subject vehicle. Further, there are no allegations in this case regarding the warranty policy and procedure manuals.” (Def.’s Opp. 8:13–16.)

In reply, Plaintiffs argue that “policies and procedures for additional years while the vehicle is still under warranty are relevant, at a minimum, to show changes in Ford’s practices.” (Pls.’ Reply 2:8–9.) Plaintiffs therefore maintain that “because Ford limits the scope of document that it is willing to produce solely to the policies from 2024, further responses are warranted.” (Id. at 2:15–16.) The Court agrees.

Based on the foregoing, the Court finds that Plaintiffs have provided sufficient facts to establish the requisite good cause for the further production of documents relating to Defendant’s warranty claims policies and procedures from the date of purchase (2022) to present. (Code Civ. Proc. § 2031.310, subd. (b)(1).) Accordingly, the motion is granted as to Plaintiffs’ RFPs, Set One, Nos. 16–18 and 20–24.

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RFP
Nos. 25–29

Plaintiffs’ RFP Nos. 25–29 seek the production of “all documents from 2022 to present evidencing or discussing” Defendant’s goals relating to vehicle replacements/repurchases, and statistics related to other consumer complaints. In response, Defendant asserted objections based on overbreadth, undue burden, relevance, and privilege.

Plaintiffs argue that further responses are warranted because “these requests are relevant ... because it would tend to show whether a defect or nonconformity exists in these types of vehicles and when this defect or nonconformity first arose. Information about other similar vehicle complaints may also refute Ford’s affirmative defenses claiming that Plaintiff and/or others misused or abused the vehicle or engaged in unauthorized or unreasonable use.” (Pls.’ Mot. 5:28–6:8.)

In opposition, Defendant argues

that “Plaintiffs’ requests for ‘all documents’ were not limited to the claims made by Plaintiffs in this case or to their 2022 Ford F-150 vehicle, and are therefore overly broad. Further, Plaintiffs’ request for the production of ‘all documents’ does not identify with reasonable particularity which documents Plaintiffs want Ford to produce.” (Def.’s Opp. 9:12–16.)

The Court finds that information about similar defects in other vehicles is relevant to proving Defendant’s willful failure to comply with the Song-Beverly Act. Documents responsive to the subject discovery requests may reasonably lead to the discovery of information as to the nature and duration of the defects, Defendant’s knowledge of the defects, and Defendant’s inability to repair the defects.

However, the Court finds that these RFPs remain overbroad in scope. The Court therefore limits the scope of the requests to the extent that they require Defendant to search its internal databases for emails or other electronic correspondence. The Court further limits the scope of RFPs Nos. 28 and 29 specifically to 2022 Ford F-150 vehicles purchased in the State of California, experiencing the same defects alleged in Plaintiffs’ complaint.

As to Defendant’s privilege arguments, the Court agrees with Plaintiffs that “Ford failed to provide a declaration supporting these claims of privilege or a privilege log, [therefore] Ford’s objections are insufficient.” (Pls.’ Reply 2:23–25.) Accordingly, the motion is granted as to Plaintiffs’ RFPs, Set One, Nos. 25–29, subject to the limitations set forth above.

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RFP

No. 30

Plaintiffs’ RFP No. 30 seeks the production of “all DOCUMENTS which evidence or describe the numbers of owners of 2022 Ford F150 vehicles who have complained of any of the conditions, defects, or nonconformities for which the SUBJECT VEHICLE was presented.” (Pls.’ Sep. Stmt. 89:23–26.)

Here, Defendant argues that it “agreed to supplement its Responses to these Requests after the parties met and

conferred regarding the repair presentations to be included within the scope of Ford's searches but, to date, Plaintiffs have not been willing to engage in these discussions. Otherwise, Ford properly objected to this Request because it is overly broad, unduly burdensome, and seek irrelevant documents, as it is not limited to a reasonable or relevant timeframe or to the subject vehicle." (Def.'s Opp. 10:26–11:5.)

To the extent that Defendant argues that Plaintiffs failed to meet and confer regarding RFP No. 30, it appears to the Court that on 4/27/26, Plaintiffs' counsel asked Defendant's counsel for their availability to meet and confer, but received no response. (Ex. G to Leite Decl.) Therefore, the Court finds this argument unavailing.

Based on the foregoing, the Court finds that further responses to RFP No. 30 are warranted, with the limitation that Defendant is not required to search its internal databases for emails or other electronic correspondence. The Court further limits the scope of RFP No. 30 specifically to 2022 Ford F-150 vehicles purchased in the State of California, experiencing the same defects alleged in Plaintiff's complaint. (Compl. ¶ 14.)

Accordingly, the motion is granted as to Plaintiff's RFP No. 30, subject to the limitations set forth above.

Sanctions

"The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2031.310, subd. (h).) Additionally, "the court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc. § 2023.030, subd. (a).)

Here,

Plaintiffs seek to recover \$2,195.00 in monetary sanctions against Defendant and its counsel, accounting for: (1) 2.1 hours of Plaintiffs' counsel's time spent drafting the instant motion and accompanying papers; (2) an additional

anticipated 2 hours spent reviewing Defendant's opposition and drafting a reply; and (3) an additional anticipated 2 hours spent preparing for and attending the instant hearing, at counsel's hourly billing rate of \$350.00 per hour. (Leite Decl. ¶ 12.) Plaintiffs also seek to recover \$60.00 in filing fees. (Id. at ¶ 13.)

Defendant

argues in opposition that "even if the Court were to grant Plaintiffs' Motion, monetary sanctions would not be warranted under California Code of Civil Procedure section 2023.030 because Ford served proper and appropriate responses, supplemental responses, and objections." (Def.'s Opp. 15:2–4.)

In granting

the instant motion, the Court finds it reasonable to impose \$410.00 in monetary sanctions against Defendant and its counsel.

CONCLUSION

The motions are granted in part. The

Court orders Defendant to provide further code-compliant responses to Plaintiff's Requests for Production of Documents ("RFPs"), Set One, Nos. 16–18, 20–29, and 30, as limited above, within 30 days. The Court imposes \$410.00 in monetary sanctions against Defendant and its counsel, payable within 45 days.